the entire system to halt and catch fire.

The legislative branch, the two houses of Congress, willingly abandoned its supervisory role: even as the number of IC government employees and private contractors was exploding, the number of congresspeople who were kept informed about the IC's capabilities and activities kept dwindling, until only a few special committee members were apprised in closed-door hearings. Even then they were only informed of some, but not all, of the IC's activities. When rare public hearings on the IC were held, the NSA's position was made strikingly clear: The agency would not cooperate, it would not be honest, and, what was worse, through classification and claims of secrecy it would force America's federal legislatures to collaborate in its deception. In early 2013, for instance, James Clapper, then the director of National Intelligence, testified under oath to the US Senate Select Committee on Intelligence that the NSA did not engage in bulk collection of the communications of American citizens. To the question, "Does the NSA collect any type of data at all on millions or hundreds of millions of Americans?" Clapper replied, "No, sir," and then added, "There are cases where they could inadvertently perhaps collect, but not wittingly." That was a witting, bald-faced lie, of course, not just to Congress but to the American people. More than a few of the congresspeople to whom Clapper was testifying knew very well that what he was saying was untrue, yet they refused, or felt legally powerless, to call him out on it.

The failure of the judiciary was, if anything, even more disappointing. The Foreign Intelligence Surveillance Court (FISC), which oversees intelligence surveillance within the United States, is a specialized body that meets in secret and hears only from the government. It was designed to grant individual warrants for foreign intelligence collection, and has always been especially accommodating to the NSA, approving well over 99 percent of the agency's requests—a rate more suggestive of a ministerial rubber stamp than a deliberative judicial process. After 9/11, the court expanded its role from authorizing the surveillance of specific individuals to ruling on the legality and constitutionality of broad programmatic surveillance, without any adversarial scrutiny. A body that previously had been tasked with approving the surveillance of Foreign Terrorist #1 or Foreign Spy #2 was now being used to legitimize the whole combined infrastructure of PRISM and upstream collection. Judicial review of that infrastructure was reduced, in the words of the ACLU to a secret court upholding secret programs by secretly reinterpreting federal law.

When civil society groups like the ACLU tried to challenge the NSA's